

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.

4. M-CV-0090473 LVNV FUNDING v. UREN, BRITTANY

The motion hearing – opposition is dropped from calendar as no moving papers were filed with the court.

5. M-CV-0093884 THE NORTH RIVER INS. v. BACKYARD UNLIMITED

Plaintiff's (1) Motion to Deposit Bond Funds with Court; (2) For Exoneration of Bond; (3) For Award of Attorney's Fees

Plaintiff The North River Insurance Company seeks to deposit with the court \$25,000 and be discharged from liability pursuant to Code of Civil Procedure section 386 et seq. The court will discharge a plaintiff stakeholder from liability who claims no interest in the res when “double or multiple claims are made, or may be made, by two or more persons.” (Code Civ. Proc., § 386, subd. (b).) A surety may interplead the bond funds to minimize the surety's risk. (*Karton v. Ari Design & Construction Inc.* (2021) 61 Cal.App.5th 734, 751–54.)

The North River Insurance Company presents evidence that it holds a surety bond naming Backyard Unlimited Construction Inc. for a bond limit of \$25,000. The North River Insurance Company presents evidence it has received competing claims in excess of the bond amount from defendants, Brian Helmowski, Eltra Sheppard-Foreman, John Heathcliff and CRC Builders Inc. The North River Insurance Company subsequently dismissed defendant John Heathcliff from the action. No parties opposed the motion.

The motion to deposit bond and for exoneration of bond is granted.

As to attorney's fees, the court has the discretion to award reasonable attorney fees “from the amount in dispute which has been deposited with the court.” (Code Civ. Proc., § 386.6, subd. (a).) The North River Insurance Company must deposit the funds with the court prior to obtaining an attorney's fees award from it. (*Wells Fargo Bank v. Zinnel* (2004) 125 Cal.App.4th 393, 400–03.) A review of the court's file reveals The North River Insurance Company has not yet deposited bond funds with the court. As such, the request for attorney's fees is denied without prejudice.

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